

2:00 PM

LINE: 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

CITY OF FOSTER CITY  
ELIZABETH KARNAZES

BENJAMIN L. STOCK  
PRO SE

DEFENDANT JOHN HARTFORD'S DEMURRER TO PETITIONER'S COMPLAINT

TENTATIVE RULING:

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PARTIES TO APPEAR.

2:00 PM

LINE: 3

25-CIV-01788

JOHN P. MCATAMNEY, ET AL VS. JAMES E. MCGOVERN, INC.

JOHN P MCATAMNEY  
JAMES E. MCGOVERN, INC.

ADAM M. KOSS  
AUDREY S. TAM

**DEFENDANT JAMES E. MCGOVERN, INC'S MOTION FOR SUMMARY JUDGMENT/ ADJUDICATION**

**TENTATIVE RULING:**

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Initially, the Court notes that Defendant has not provided the correct address for the hearing. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, CA 94080. (See Cal. Rules of Court, rule 3.1110 [the notice “must specify” the location of the hearing].)

Through its Motion for Summary Judgment/Adjudication (the “Motion”), Defendant seeks summary judgment on the Complaint or, alternatively, summary adjudication of three issues defined in the Motion.

The Motion for Summary Judgment is **DENIED**.

The Motion for Summary Adjudication as to Issue No. 1 is **DENIED**.

The Motion for Summary Adjudication as to Issue No. 2 is **DENIED**.

The Motion for Summary Adjudication as to Issue No. 3 is **DENIED**.

Plaintiffs’ Objections to Evidence in Opposition are ruled upon as indicated *infra*.

Defendant’s Objections to Evidence in Reply are ruled upon as indicated *infra*.

**BACKGROUND**

The Complaint alleges that Plaintiffs, a construction firm and its sole shareholder, officer, and director, relied on Defendant, their insurance broker, which represented in writing that a new commercial general liability insurer, Mt. Hawley, offered “all of the same endorsements and coverages” as Plaintiffs’ then-current insurer, Colony, which Plaintiffs had previously procured through Defendant, but for more than \$2,000 less. (Complaint, ¶¶ 3-4, 10-12, 15; see also Reply to Plaintiffs’ Additional Material Facts in Opp., AMF No. 1.) After Plaintiffs were sued for alleged defects in a high-end home renovation project, they learned that the new policy contained a breach-of-contract exclusion that effectively rendered the policy worthless, and that Defendant refused to provide a declaration regarding the insurance or otherwise timely assist Plaintiffs. (Complaint, ¶¶ 14, 17-20; see also Reply to Plaintiffs’ Additional Material Facts in Opp., AMF No. 6.) Plaintiffs ultimately settled that lawsuit for \$200,000 and paid other professionals in that action more than \$100,000. (Complaint, ¶¶ 22-23.) Plaintiffs allege that Defendant’s failure to meet the standard of care by negligently recommending less coverage than their previous policy was a substantial factor in causing Plaintiffs to incur those expenses. (Id., ¶¶ 22-23.)

Through its Motion, Defendant seeks summary judgment on the Complaint in its entirety (Code Civ. Proc., § 437c, subd. (a)) or, alternatively, summary adjudication of three issues defined in the Motion. (Id., § 437c, subd. (f).) Issue No. 1 asserts that all three causes of action are meritless because Plaintiffs waived any right